

IN THE COURT OF COUNTY
(COURT AND COUNTY NAMED IN THE CAPTION - THE COURT THAT ENTERED THE
CONVICTION, AND ITS COUNTY (STATE, SUPERIOR, MAGISTRATE, PROBATE OR
MUNICIPAL; YOUR OWN CASE PAPERS NAME BOTH, AND THE INSTRUCTIONS PAGE SAYS
WHO CAN CONFIRM THEM))
STATE OF GEORGIA

STATE OF GEORGIA,

v. CASE NO.:

MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD, OTN: (if known)
Defendant. JUDGE: (assigned by the court)

DEFENDANT'S MOTION TO RESTRICT AND SEAL RECORDS OF A MISDEMEANOR
CONVICTION
(O.C.G.A. Sec. 35-3-37(j)(4)(A) and Sec. 35-3-37(m))

The defendant, Maria-Alejandra O'Shaughnessy-Whitfield, files this motion in the above-styled criminal case, in the existing case under the existing case number, under O.C.G.A. Sec. 35-3-37(j)(4)(A) and Sec. 35-3-37(m). The defendant states:

1. The defendant was convicted of a misdemeanor offense, or of a series of misdemeanor offenses arising from a single incident, in the above-styled case.
2. The defendant has completed the terms of the sentence, including any probation, fines and restitution.
3. The defendant has not been convicted of any crime in any jurisdiction, excluding nonserious traffic offenses, for at least four years immediately preceding the filing of this motion.
4. The defendant has no pending charged offenses in any jurisdiction.
5. The offense of conviction is not an offense excluded by O.C.G.A. Sec. 35-3-37(j)(4)(B), and the lifetime maximum of two restrictions under O.C.G.A. Sec. 35-3-37(j)(4)(C) has not been reached. The exclusions turn on the exact Code section of conviction, which the defendant states below.
6. The harm otherwise resulting to the defendant clearly outweighs the public interest in the criminal history record information being publicly available.

CASE FACTS THE DEFENDANT SUPPLIES (fill each blank from the court record, never from memory; the instructions page lists where each record lives):

Date of arrest in this case:

.....

Date the adjudication of guilt was entered:

.....

Exact O.C.G.A. Code section of the misdemeanor conviction to be restricted:

.....

Terms of the sentence, itemized, and the date every term was completed:

.....

Your own statement of what has changed in your life and how this record has been a barrier (state only what you know first-hand; nothing on these lines is written for you):

.....

.....

.....

READ EACH NUMBERED STATEMENT BEFORE SIGNING. Each is pleaded as your own statement. If any numbered statement is not true of your case, do not file this motion; the instructions page tells you where to get help instead.

WHEREFORE, the defendant asks the Court to enter an order directing the Georgia Crime Information Center (GCIC) and every agency in the county named in the caption, including the arresting agency and the jail or detention center, to restrict all criminal history record information pertaining to this case, pursuant to O.C.G.A. Sec. 35-3-37(j)(4)(A); directing the Clerk of the named court to seal the record of the case, including index references and online records, pursuant to O.C.G.A. Sec. 35-3-37(m), with disclosure limited to what O.C.G.A. Sec. 35-3-37(t) and (v) permit; and, in the alternative, that the motion be set for hearing within 90 days of filing.

DATE SIGNATURE OF DEFENDANT

(The defendant signs and dates this motion personally. Nothing on this page is signed or dated for the defendant. No verification and no notary block is required by statute, and none is added.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Notch Crossing Road, Apartment 14B, Savannah, Georgia
31401-2214

TELEPHONE: (912) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Defendant, Pro Se (where unrepresented)

Route: obligation:track-pathway:GA:ga-misd-j4:sb-288-misdemeanor-conviction-restriction-and-sealing

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STATE OF GEORGIA,

v. CASE NO.:

MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD, OTN: (if known)
Defendant. JUDGE: (assigned by the court)

PROPOSED ORDER RESTRICTING ACCESS TO CRIMINAL HISTORY RECORD INFORMATION
AND SEALING THE RECORD OF THE CASE
(O.C.G.A. Sec. 35-3-37(j)(4)(A) and Sec. 35-3-37(m))

(This page is proposed by the defendant for the Court's consideration, as the controlling practice directs a
proposed order always accompany the filing. Every order line below is completed, signed and dated only
by the Court.)

Before the Court is the Defendant's Motion to Restrict and Seal Records of a Misdemeanor Conviction
under O.C.G.A. Sec. 35-3-37(j)(4)(A) and Sec. 35-3-37(m).

IT IS ORDERED that the Georgia Crime Information Center (GCIC) and every agency in the county
named in the caption, including the arresting agency and the jail or detention center, restrict all criminal
history record information pertaining to this case, identified by the OTN and the date of arrest stated
below, pursuant to O.C.G.A. Sec. 35-3-37(j)(4)(A).

IT IS FURTHER ORDERED that the Clerk of the court named in the caption seal the record of this case,
including index references and online records, pursuant to O.C.G.A. Sec. 35-3-37(m).

Disclosure of the restricted and sealed information remains limited to what O.C.G.A. Sec. 35-3-37(t) and
(v) permit.

OTN of the case (needed for this order to be actionable by GCIC):

.....

Date of arrest identified in this order:

.....

SO ORDERED, this day of, 20.....

.....

JUDGE, COURT NAMED IN THE CAPTION

(The judge's signature block is a third-party block. It is never prefilled, and the court dates its own order.)

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MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD, OTN: (if known)
Defendant.

CERTIFICATE OF SERVICE

I, Maria-Alejandra O'Shaughnessy-Whitfield, certify that on the date stated below I served a copy of the
Defendant's Motion to Restrict and Seal Records of a Misdemeanor Conviction and the accompanying
proposed order on each person listed below, by certified mail, e-filing or hand delivery.

NAME AND MAILING ADDRESS OF THE PROSECUTING ATTORNEY SERVED, IDENTIFIED AS
DISTRICT ATTORNEY OR SOLICITOR-GENERAL FOR THE COUNTY (you write it here before
service; the clerk's office can provide it):

.....
.....

OFFICE OF THE CLERK OF COURT SERVED (the clerk of the court named in the caption; the clerk's
office can confirm its service address):

.....
.....

Method used to serve each recipient (chosen from those listed above, as the clerk directs):

.....

DATE OF SERVICE

SIGNATURE OF DEFENDANT

This page is not proof of service and does not say that anything has been served. It is completed and
signed when the copies actually go out. A date or a signature written before the copies go out would be
false.

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EXHIBIT A - FINAL DISPOSITION

For: Maria-Alejandra O'Shaughnessy-Whitfield

Filing: the Defendant's Motion to Restrict and Seal Records of a Misdemeanor Conviction in this packet.

ATTACH BEHIND THIS PAGE: a copy of the final disposition of this case.

WHERE YOU GET IT: the clerk of the convicting court.

HOW: Ask the clerk of the convicting court for a copy of the final disposition and attach it behind this page.

The platform never collects, inspects or authenticates this record. You obtain it, you check your answers against it, and you correct the packet where they disagree.

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EXHIBIT B - GEORGIA CRIMINAL HISTORY REPORT

ATTACH THIS ONLY WHERE YOU RELY ON IT OR THE COURT EXPECTS IT.

For: Maria-Alejandra O'Shaughnessy-Whitfield

Filing: the Defendant's Motion to Restrict and Seal Records of a Misdemeanor Conviction in this packet.

ATTACH BEHIND THIS PAGE: your own Georgia criminal history report.

WHERE YOU GET IT: most Georgia sheriff's offices and police departments, or GCIC.

HOW: GBI's guidance says a Georgia criminal history record can be obtained from most sheriff's offices or police departments, with requirements varying by agency. Bring government photo identification and the agency's fee.

The platform never collects, inspects or authenticates this record. You obtain it, you check your answers against it, and you correct the packet where they disagree.

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EXHIBIT C - PROOF OF SENTENCE COMPLETION

ATTACH THIS ONLY WHERE YOU HAVE IT, SUCH AS A PROBATION TERMINATION ORDER.

For: Maria-Alejandra O'Shaughnessy-Whitfield

Filing: the Defendant's Motion to Restrict and Seal Records of a Misdemeanor Conviction in this packet.

ATTACH BEHIND THIS PAGE: proof that every term of the sentence was completed, such as a probation termination order.

WHERE YOU GET IT: the clerk of the convicting court, or the supervising probation office.

HOW: Ask the clerk of the convicting court or the supervising probation office for the order terminating probation or documentation that the sentence was completed.

The platform never collects, inspects or authenticates this record. You obtain it, you check your answers against it, and you correct the packet where they disagree.

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EXHIBIT D - PARTICIPANT-SUPPLIED SUPPORTING EXHIBITS

ATTACH THESE ONLY WHERE YOU CHOOSE TO SUPPLY THEM.

For: Maria-Alejandra O'Shaughnessy-Whitfield

Filing: the Defendant's Motion to Restrict and Seal Records of a Misdemeanor Conviction in this packet.

ATTACH BEHIND THIS PAGE: supporting exhibits you choose to supply: diplomas, certificates, letters of support, treatment records, evidence of community involvement.

WHERE YOU GET IT: your own records.

HOW: The packet formats what you supply and assesses none of it.

The platform never collects, inspects or authenticates this record. You obtain it, you check your answers against it, and you correct the packet where they disagree.

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